(c) for purposes of sale, apply the text or part of the text of the National Anthem onto any matter or object;

unless prior permission of the Minister has been granted in terms of section 6.

(2) Any person who contravenes subsection (1) shall be guilty of an offence and liable to a fine not exceeding one thousand dollars or to imprisonment for a period not exceeding two months or to both such fine and imprisonment.

Application for permission to do certain things in relation to the National Anthem

5. Any person who wishes to obtain permission for the purposes of subsection (1) of section 4 may apply to the Minister, in writing, for such permission, giving details of the activity or purpose for which the permission is required and if so requested by the Minister, supply a sample or description of the text or part of the text of the National Anthem, the article or object on which the text or part of the text of the National Anthem is to be applied.

Grant or refusal of permission

6. Upon receipt of an application in terms of section 5, the Minister—

(a) may grant the application if he is satisfied that the activity or purpose of which permission is being sought—

(i) will not bring the National Anthem into disrepute; or

(ii) will not result in excessive exploitation of the National Anthem for commercial purposes; or

(iii) will generally not be contrary to public interest;

(b) may not grant the application if he is not satisfied as provided for in paragraph (a).

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Supplement to the Zimbabwean Government Gazette dated the 9th May, 1997. Printed by the Government Printer, Harare.

ARRANGEMENT OF SECTIONS

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PRELIMINARY

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1. Title.
2. Interpretation.

PART II

BOARD

3. Vacation of office by member.
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16. Surrender of registration certificate.
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18. Inspections and examination of accounts.
19. Repeals.

FIRST SCHEDULE: Forms.

SECOND SCHEDULE: Repeals.

IT is hereby notified that the Minister of Public Service, Labour and Social Welfare has, in terms of section 28 of the Private Voluntary Organizations Act [*Chapter 17:05*], made the following regulations:—

PART I

PRELIMINARY

Title

1. These regulations may be cited as the Private Voluntary Organizations (Board) and (General) Regulations, 1997.

Interpretation

2. In these regulations—

"Board" means the Private Voluntary Organizations Board establishment in terms of section 3 of the Act;

"form" means the appropriate form set out in the First Schedule;

"member" means a member of the Board.

PART II

BOARD

Vacation of office by member

3. (1) A member shall vacate his office and his office shall become vacant—

(a) one month after the date he gives notice in writing of his intention to resign his office or after the expiration of such shorter period as he and the Minister may agree; or

(b) thirty days after the date he is sentenced by a court after conviction of a criminal offence and is sentenced therefor to a period of imprisonment without the option of a fine, whether or not the operation of the sentence is suspended; or

(c) if, without the consent of the Board, he is absent from two consecutive meetings of the Board of which he has had notice; or

(d) if he ceases to hold the qualification which was necessary in terms of subsection (2) of section 3 of the Act for his appointment.

(2) The Minister may require a member to vacate his office if the Minister is satisfied that the member—

(a) has been guilty of conduct which renders him unfit to be a member; or

(b) has failed to comply with the conditions of his office fixed by the Minister; or

(c) is mentally or physically incapable of efficiently performing his duties as a member.

(3) The Minister may suspend from office a member against whom criminal proceedings are instituted for an offence in respect of which a sentence of imprisonment of six months or more without the option of a fine may be imposed and whilst that member is so suspended, he shall not carry out any duties as a member.

Meetings of Board

4. (1) The Board shall hold its first meeting on such date and at such place as the Minister may fix and thereafter the Board shall meet for the dispatch of business and adjourn, close and otherwise regulate its meetings and procedures as it thinks fit.

(2) The chairman of the Board—

(a) may himself at any time convene a meeting of the Board;

(b) shall, at the request in writing of the Minister or of not less than four members, convene a special meeting of the Board, which meeting shall be convened for a date nor less than seven days or more than thirty days after receipt of such request.

(3) Subject to this section, the Board shall hold not less than four general meetings in each calendar year at intervals of not more than four months.

(4) If, when a meeting becomes due in terms of subsection (3), there is no urgent matter for discussion at the meeting, the chairman, with the permission of the Minister, may by notice to members, cancel the meeting:

Provided that no more than two meetings in each calendar year may be cancelled in terms of this subsection.

(5) If at a meeting of the Board, the chairman is absent, the members present may elect one of their number to preside at the meeting.

(6) A majority of members shall form a quorum at a meeting of the Board.

(7) All acts, matters or things authorized or required to be done by the Board shall be decided by consensus at a meeting of the Board at which a quorum is present.

Committees of Board

5. (1) The Board may establish committees as it considers to be necessary or desirable.

(2) A committee established in terms of subsection (1) shall consist of—

(a) a member of the Board who shall be the chairman of the committee; and

(b) not less than two other members who may be members of the Board or who may be co-opted because of their specialized knowledge of the subject to be dealt with by the committee and are, in the opinion of the committee, suitable to be members of the committee:

Provided that not more than three persons may be co-opted in terms of this paragraph as members of the committee at any time.

(3) A committee established in terms of subsection (1) shall advise the Board on any matter dealt with by the committee.

(4) The chairman of the Board shall be an *ex officio* member of the committees referred to in this section.

Ad hoc committees

6. (1) The Board may at any time appoint an *ad hoc* committee to consider any matter referred to the Board.

(2) A committee appointed in terms of subsection (1) shall consist of—

(a) a member of the Board who shall be the chairman of the committee; and

(b) not less than two other members who may be members of the Board or may be co-opted because of their specialized knowledge on the subject to be dealt with by the committee.

(3) The chairman of the Board shall be an *ex officio* member of any committee appointed in terms of subsection (1).

Secretary to Board

7. The Secretary to the Board shall serve as secretary to all the committees established or appointed in terms of these regulations.

Remuneration and allowances

8. A member of the Board or of a committee established or appointed in terms of these regulations shall be paid from the funds set aside for that purpose such remuneration and allowances as the Minister, after consultation with the Minister responsible for finance, may fix.

PART III

GENERAL

Registration of a private voluntary organization

9. (1) An application for the registration of a private voluntary organization in terms of subsection (1) of section 9 of the Act shall be lodged with the registrar in form P.V.O. 1, accompanied by a constitution, a memorandum of understanding or an agreement as the case may be.

(2) In arriving at a decision on whether or not to register a private voluntary organization the Board shall have regard to the following—

(a) the objectives of the private voluntary organization and the area in which it proposes to render its services;

(b) the constitution of the managing committee, how vacancies on the committee are filled and the conflict resolution procedure of the organization;

(c) the extent to which the objectives of the private voluntary organization are developmental in nature and likely to result in employment creation.

(3) The notice required to be published in terms of subsection (2) of section 9 of the Act shall be in form P.V.O. 2.

(4) Any objection in terms of subsection (3) of section 9 of the Act to the registration of a private voluntary organization shall be lodged with the Registrar within twenty-one days of the date the notice is published in a newspaper in terms of subsection (2) of section 9 of the Act.

(5) The Registrar shall inform the Board about the objection and a determination by the Board shall be made after a hearing has been given to the applicant, provided the objection is considered valid or justifiable.

(6) If in the opinion of the Board the objections have no substance or merit the Board shall register the organization.

Appeals to the Minister

10. (1) An appeal to the Minister in terms of section 14 of the Act against a decision of the Board shall be made in writing and shall set out the following—

(a) the name and address of the private voluntary organization; and

(b) the decision of the Board against which the appeal is being made; and

(c) the grounds upon which the appeal is made.

(2) An appeal referred to in subsection (1) shall be made within sixty days of date of receipt by the private voluntary organization of the decision of the Board.

Partial exemption

11. (1) An application for the partial exemption of a private voluntary organization in terms of subsection (1) of section 7 of the Act, shall be in form P.V.O. 4 and shall be lodged with the Registrar.

(2) A certificate of exemption granted in terms of subsection (1) of section 7 of the Act shall be in form P.V.O. 5.

Temporary authority to collect contributions

12. (1) An application for temporary authority to collect contributions, in terms of subsection (1) of section 8 of the Act, shall be in form P.V.O. 6.

(2) An authority in terms of subsection (1) of section 8 of the Act shall be in form P.V.O. 7 and may be subject to one or more of the following conditions which the Registrar may impose—

(a) the contributions collected shall be used for the purpose for which the authority was granted and shall be disposed of within sixty days of the date of expiry of the authority;

(b) all moneys collected in terms of the authority shall be paid into a bank account that shall be disclosed to the Registrar or a person designated by him;

(c) the person, group of persons or private voluntary organization to whom or to which the authority has been granted shall keep proper receipts, books of account of the contributions collected, lists of donations, if any, and details of the manner in which the moneys have been spent, and the receipts, books of account and supporting documents may at any time be inspected by the Registrar or person designated by him;

(d) the books of account and supporting documents shall clearly indicate those amounts of the contributions collected which were used respectively for administrative expenses and the remuneration of any person connected with or acting on behalf of that organization;

(e) the person, group of persons or private voluntary organization to whom or to which the authority has been granted shall, within ninety days of the expiry of the authority, submit to the Registrar a final statement of income and expenditure, together with such additional information as the Registrar may require in respect of the manner of collecting and disposal of the contributions collected.

(3) For the purpose of paragraph (b) of subsection (2) "bank account" includes an account at a commercial bank, post office or building society.

Branch committees of private voluntary organizations

13. (1) The letter of delegation which a registered private voluntary organization grants to a branch of that organization in terms of subsection (1) of section 17 of the Act shall be in form P.V.O. 8.

(2) A letter of delegation granted, in terms of subsection (1) of section 17 of the Act, by a private voluntary organization to a branch of that organization—

(a) shall be returned to the registered private voluntary organization within twenty-one days of such branch ceasing to function as a branch of that organization;

(b) may be withdrawn by the registered private voluntary organization at any time—

(i) for good and sufficient reason; or

(ii) in order that the letter of delegation be amended or a fresh letter of delegation be granted.

Form of authority to collect contributions

14. An authority issued by a registered private voluntary organization to any person to collect or accept contributions on behalf of that registered private voluntary organization shall be in form P.V.O. 9.

Restrictions on authority to collect

15. No registered private voluntary organization shall authorize any other organization to collect on its behalf unless the latter

organization is registered in terms of section 6 of the Act or has been granted temporary authority in terms of section 8 of the Act.

Surrender of registration certificate

16. (1) The Registrar may, in terms of section 12 of the Act, impose one or more of the following as conditions to the acceptance of the surrender of a certificate by a private voluntary organization—

(a) that the organization shall, within a period to be specified by the Registrar, submit to the Registrar a final audited balance sheet and studied statement of income and expenditure;

(b) that the organization shall not destroy or dispose of its records unless the prior approval of the Registrar has been obtained;

(c) that the organization shall, at its own expense, publish in a newspaper circulating in the area concerned, a notice making known to the public that it has discontinued its functions or that it intends to discontinue its functions, but where for reasons of financial deficiency this is not possible, the Registrar will publish such notice at his expense;

(d) that the organization shall dispose of its assets in terms of its constitution and render proof to the Registrar of such disposal.

(2) In the event of the cancellation of registration and the withdrawal of the certificate by a private voluntary organization in terms of section 12 of the Act, the Registrar shall give notice thereof in the *Gazette*.

Reports and returns

17. The secretary of a registered private voluntary organization shall in terms of section 15 of the Act, render to the Registrar—

(a) within twenty-one days of the completion of the audit required in terms of section 19 of the Act, a certified copy of the audited accounts and any report thereon;

(b) within twenty-one days of elections, a return of the names and addresses of the office bearers;

(c) not later than twenty-one days of the end of a financial year, an annual report of activities and annual returns of imported assets to enable a check on the proper use of imported assets for which duty, surtax, import tax etc, was waived.

Inspections and examination of accounts

18. (1) Where the Board receives information suggesting that there is maladministration within an organization or the annual audit report of the finances of an organization points to such maladministration, it shall institute an enquiry into the financial operations and administrative affairs of the organization.

(2) In the process of carrying out investigations, the Board shall afford the member or members of the executive committee suspected of maladministration a full opportunity to respond to and explain any alleged maladministration on their part and such responses and explanations shall be recorded by the Board.

(3) Where in the opinion of the Board the maladministration is of such a serious nature to warrant either a more thorough investigation or disciplinary measures, the matter shall be referred to the Minister, with sufficient reasons for the referral.

Repeals

19. The regulations specified in the Second Schedule are repealed.

FIRST SCHEDULE
FORMS

Form P.V.O. 1

PRIVATE VOLUNTARY ORGANIZATIONS ACT [*CHAPTER 17:05*]

Application for Registration of a Private Voluntary Organization

1. Particulars of the organization applying for registration—

(a) Name: .....

.....

(b) Registered address: .....

.....

.....

.....

(*state number, street and town and P.O. Box No. if any*)

(c) Date of establishment: .....

.....

(d) area in which organization operates or proposes to operate: .....

.....

(e) branches of organization and where situated (town or place): .....

.....

.....

(f) Aims and objectives (give description of activities, aims and objects of organization for inclusion in the registration certificate and in the *Gazette*): .....

.....

.....

.....

.....

(g) Has any member of the managing committee been a member of any other organization which has applied for and been registration under this Act? Give details. Supply CVs of members of managing committee.

.....

2. Particulars of managing committee—

(a) Full name, address and occupation of—

Chairman: .....

Vice-chairman: .....

Secretary (Honorary): .....

Treasurer (Honorary): .....

Other members .....

.....

(b) Salary or other form of payment of—

Secretary: .....

Treasurer: .....

Any other office-bearer of the organization: .....

.....

.....

(c) Name and address of bank at which funds of organization are kept: ..

.....

.....

(d) Date on which organization's financial year ends: .....

3. Control of branches (if branches exist)—

(a) To what extend are the branches subject to the control of the headquarters of the organization?.....

.....

.....

(b) To what extent do the branches control their own financies? .....

.....

.....

(c) Does each branch have its own constitution and managing committee? If so, attach a copy of the constitution and submit details of committee membership: .....

.....

.....

(d) Is any office bearer of the branch paid (in any way) for services rendered to the organization? If so, give particulars: .....

.....

.....

4. Sources of income (describe briefly the sources or expected sources of income of the organization, including income from government or local authorities, or other grants-in-aid): .....

.....

.....

5. I, the undersigned, being the Secretary of the above-mentioned organization, hereby apply for the registration of the organization and declare that the information supplied above is true and correct, to the best of my knowledge and belief.

I attach a copy of the organization's constitution.

.....

Secretary.

Date: .....

Place: .....

Form P.V.O. 2

PRIVATE VOLUNTARY ORGANIZATIONS ACT [*CHAPTER 17:05*]

Notice of Application for Registration of a Private Voluntary Organization

NOTICE is hereby given, in terms of subsection (2) of section 9 of the Private Voluntary Organizations Act [*Chapter 17:05*], that application for registration has been made in respect of:

1. Name and address of private voluntary organization: .....

   .....

   .....

2. Aims and objects of private voluntary organization: .....

   .....

   .....

3. Area or areas in which the private voluntary organization proposes to render its services: .....

   .....

   .....

   .....

Any objections to the proposed registration must be lodged with the Registrar of Private Voluntary Organizations, P.O. Box CY 429, Causeway, not later than twenty-one days from the date of publication of this notice.

.....

Secretary

Note.—: These words and figures need be published in the newspaper.

Form P.V.O. 3

PRIVATE VOLUNTARY ORGANIZATIONS ACT [*CHAPTER 17:05*]

Certificate of Registration

I hereby certify that the .....

.....

.....

..... (registered number)

has been registered as a private voluntary organization in terms of subsection (5) of section 9 of the Private Voluntary Organizations Act [*Chapter 17:05*].

The objects of the private voluntary organization are (summary): .....

.....

.....

.....

The registration of the said private voluntary organization is subject to the following conditions–

(a) the organization is required to quote its registered number ..... on all public documents, advertisements, certificates of authority, delegations or other means of public communication;

(b) no alterations shall be made to the name or objects of the organization except in compliance with subsection (8) of section 9 of the Act.

Given this ..... day of ....., 19 .....

.....

Registrar of Private Voluntary Organization.

Form P.V.O. 4

PRIVATE VOLUNTARY ORGANIZATIONS ACT [*CHAPTER 17:05*]

Application for Exemption from the Operations of the Provisions of Private Voluntary Organizations Act

In terms of subsection (1) of section 7 of the Private Voluntary Organizations Act [*Chapter 17:05*]: .....

.....

Secretary of .....

.....

(*state name and registered number of P.V.O.*)

hereby makes application for the exemption of the said .....

.....

from the operation of the provisions of .....

.....

.....

(*state relative section(s) or subsection(s)*)

of the Private Voluntary Organizations Act [*Chapter 17:05*] on the grounds set forth in the attached memorandum.

.....

Signature.

Secretary of .....

(*name and registered number of P.V.O.*)

Place: .....

Date: .....

Form P.V.O. 5

PRIVATE VOLUNTARY ORGANIZATIONS ACT [*CHAPTER 17:05*]

Certificate of Exemption

I hereby certify, that, in terms of subsection (1) of section 7 of the Private Voluntary Organizations Act [*Chapter 17:05*], the .....

.....

.....

has been exempted from the following provisions of the Act—

.....

.....

.....

.....

This certificate of exemption is valid—

from ..... to .....

subject to the following conditions:

.....

.....

.....

.....

Given this ..... day of ....., 19 .....

.....

Registrar of Private Voluntary Organizations.

Form P.V.O. 6

PRIVATE VOLUNTARY ORGANIZATIONS ACT [*CHAPTER 17:05*]

Application for Temporary Authority to collect contributions

1. Particulars of person, group of persons or voluntary organization seeking temporary authority to collect or receive contributions—

   (a) Name: .....

   (b) Address: .....

2. State the purpose of collection or receipt of contributions: .....

   .....

   .....

   .....

3. State reason why temporary authority be granted collect/receive contributions: .....

   .....

   .....

   .....

   .....

Date: ....

Signature of person applying for temporary authority.

Note.—State whether application is by—

(a) one person (self): .....

(b) group of persons; if so, give group name: .....

.....

.....

(c) Voluntary Organization: Yes/No: .....

Form P.V.O. 7

PRIVATE VOLUNTARY ORGANIZATIONS ACT [*CHAPTER 17:05*]

Temporary Authority to Collect/Receive Contributions

IN terms of subsection (1) of section 8 of the Private Voluntary Organizations Act [*Chapter 17:05*] authority is hereby granted to: .....

.....

.....

(name person, group of persons or unregistered voluntary organization) to collect/receive contributions in respect of: .....

.....

.....

.....

(*state purpose of collection/receiving contributions*)

This authority is valid for the period:—

From ..... to .....

In respect of this authority the following conditions apply: .....

.....

.....

.....

.....

.....

Given this ..... day of ....., 19 .....

.....

Registrar of Private Voluntary Organizations

P.V.O. 8

PRIVATE VOLUNTARY ORGANIZATIONS ACT [*CHAPTER 17:05*]

Letter of Delegation

IN terms of subsection (1) of the section 17 of the Private Voluntary Organizations Act [*Chapter 17:05*], I .....

do hereby grant .....

.....

(*name branch*)

to collect/receive contributions for and carry on within its area of operation the functions and activities of the .....

.....

.....

.....

(*name and registered number of voluntary organization granting delegated authority.*)

.....

Secretary: *Private Voluntary Organization granting authority*

Place: .....

Date: .....

Note.—This letter of delegation is granted subject to the provisions of the Private Voluntary Organizations Act [*Chapter 17:05*], and the regulations made thereunder. Particular attention is drawn to sections 17 and 18 of the Act and to section 11 of the Private Voluntary Organizations (General) Regulations, 1997.

Form P.V.O. 9

PRIVATE VOLUNTARY ORGANIZATIONS ACT [*CHAPTER 17:05*]

Authority to collect Contributions

IN terms of section 14 of the Private Voluntary Organizations (General) Regulations, 1997, authority is granted to .....

.....

.....

(*state name of person*)

to collect/receive contributions on behalf of .....

.....

(*state name of private voluntary organization*)

during the period .....

at .....

(*state place of area*)

.....

Chairman/Secretary of Private Voluntary Organization

Date: .....

Note:—This authority does not take the place of, or in any way detract from any requirements of a local authority in regard to the collection of contributions.

SECOND SCHEDULE (*Section 20*)

REPEALS

Regulations	*Statutory Instrument*
Welfare Advisory Board (Travelling and Subsistence) Regulations, 1967	791 of 1967
Welfare Advisory Board (Travelling and Subsistence) (Amendment) Regulations, 1973 (No. 1).	696 of 1973
Welfare Advisory Board (Travelling and Subsistence) (Amendment) Regulations, 1975 (No. 2)	627 of 1975
Welfare Organizations (General) Regulations, 1967	652 of 1967
Welfare Organizations (General) (Amendment) Regulations, 1970 (No. 1)	203 of 1970
Welfare Organizations (Welfare Advisory Board) (Proceedings) Regulations, 1967	653 of 1967

Supplement to the Zimbabwean Government Gazette dated the 16th May, 1997.
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Collective Bargaining Agreement: Transport Operating Industry

IT is hereby notified that the Collective Bargaining Agreement set out in the Schedule, which further amends the agreement published in Statutory Instrument 94 of 1995, has been registered in terms of section 79 of the Labour Relations Act [*Chapter 28:01*].

SCHEDULE

NATIONAL EMPLOYMENT COUNCIL FOR THE TRANSPORT OPERATING INDUSTRY

COLLECTIVE BARGAINING AGREEMENT: TRANSPORT OPERATING INDUSTRY

Further Agreement

This further agreement shall be read as one with the agreement published in Statutory Instrument 94 of 1995 (hereinafter referred to as the "principal agreement") in accordance with the provisions of the Labour Relations Act [*Chapter 28:01*], made and entered into between the Transport Operators' Association and the Zimbabwe Rural Transport Organization (hereinafter referred to as "the employer") of the one part, and the Transport and General Workers' Union (hereinafter referred to as "the employees" or "the trade union") on the other part, being parties to the Employment Council.

Section 1 of the principal agreement is amended in subsection (2) by the deletion of "for a period of three years, unless re-negotiated and registered in a shorter period" and the substitution of "until further notice".

Whereas the trade union and the employers have reached agreement regarding wage increases for the period 1st July, 1996, through to 30th June, 1997.